

Tentative Rulings for July 16, 2026 Department PS2

**To request oral argument, you must notify Judicial Secretary
Carol Delfosse-Kidd at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department PS2 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

COUNSEL AND SELF-REPRESENTED PARTIES ARE ENCOURAGED TO APPEAR AT ANY LAW AND MOTION DEPARTMENT TELEPHONICALLY WHEN REQUESTING ORAL ARGUMENTS.

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 644 5616**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVPS2407985	ZENDA ESTATE, LLC VS POLO CLUB MAINTENANCE ASSOCIATION	CROSS-DEFENDANT POLO CLUB MAINTENANCE ASSOCIATION'S MOTION TO STRIKE CROSS COMPLAINT

Tentative Ruling: Moot as result of ruling on demurrer.

Responding party to provide notice pursuant to CCP 1019.5.

Motion to Strike

The court may, upon a motion made pursuant to CCP §435:

- (a) Strike out any irrelevant, false, or improper matter inserted in any pleading.
- (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.

(CCP § 436.) On a motion to strike, as with a demurrer, “the court treats as true the material facts alleged in the complaint, as well as any facts which may be implied or inferred from those expressly alleged.” (*Washington Int’l Ins. Co. v. Superior Court* (1998) 62 Cal. App. 4th 981, 984, n. 2.) A motion to strike is the proper vehicle to attack a punitive damages claim where the facts alleged do not rise to the level of fraud, malice or oppression. (CCP §§ 435-436; *Truman v. Turning Point of Central Calif., Inc.* (2010) 191 Cal.App.4th 53, 63.)

Here, the instant motion is moot as result of Court’s ruling on accompanying demurrer that was sustained with leave to amend as to all causes of action.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2407985	ZENDA ESTATE, LLC VS POLO CLUB MAINTENANCE ASSOCIATION	CROSS-DEFENDANT POLO CLUB MAINTENANCE ASSOCIATION'S DEMURRER TO CROSS COMPLAINT

Tentative Ruling: Sustained.

Cross Complainants are granted one additional opportunity for leave to file a 1st Amended Cross Complaint within 10 days of this order becoming final.

Responding party to provide notice pursuant to CCP 1019.5.

This action arises from the claims alleged in Zenda Estates’ April 24, 2025 Second Amended Complaint (“SAC”) for: (1) Breach of Contract and (2) Declaratory Relief regarding the Settlement Agreement and Easement Agreement between Zenda Estates and PCMA.

Defendant PCMA filed a Verified Third Amended Cross Complaint on November 6, 2025 against Cross-Complainants and other Defendants alleging eight causes of action: (1) Breach of Contract, (2) Quiet Title, (3) Enforcement of Easement, (4) Express Indemnity, (5) Equitable Indemnity, (6) Declaratory Relief, (7) Petition for Writ of Mandate, and (8) Declaratory Relief C.C.P. § 526(a).

On January 23, 2026, Cross-Complainants filed the instant Cross Complaint alleging five causes of action: (1) Breach of Contract, (2) Interference with Contractual Relations, (3) Interference with Prospective Advantage, (4) Slander of Title, and (5) Invasion of Privacy.

Cross-Defendant now demurs to the 2nd, 3rd and 5th causes of action in the Cross-Complaint on grounds of failure to state facts sufficient to constitute a cause of action and uncertainty. Cross-Complainants contend that the cause of action are sufficiently alleged.

Demurrer

A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (CCP § 430.10(e).) In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) The court assumes the truth of all material facts which have been properly pleaded, of facts which may be inferred from those expressly pleaded, and of any material facts of which judicial notice has been requested and may be taken. (*Crowley v. Katleman* (1994) 8 Cal. 4th 666, 672.) However, a demurrer does not admit contentions, deductions or conclusions of fact or law. (*Daar v. Yellow Cab Company* (1967) 67 Cal.2d 695, 713.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

A special demurrer lies where a pleading is uncertain, ambiguous and unintelligible. (CCP § 430.10(f).) Demurrers for uncertainty, however, are typically sustained where the defendant cannot reasonably determine what issues must be admitted or denied, or what claims are directed against him. (*Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616.)

2nd Cause of Action - Intentional interference with contractual relations

In order to establish liability on a claim of intentional interference with contractual relations, a plaintiff must plead the following: "(1) a valid contract between plaintiff and a third party; (2) defendant's knowledge of this contract; (3) defendant's intentional acts designed to induce a breach or disruption of the contractual relationship; (4) actual breach or disruption of the contractual relationship; and (5) resulting damage." (*Pacific Gas & Electric Co. v. Bear Stearns & Co.* (1990) 50 Cal.3d 1118, 1126, internal citations omitted.) According to the California Court of Appeals, "[a] contracting party cannot be held liable in tort for conspiracy to interfere with its own contract." (*Asahi Kasei Pharma Corp. v. Actelion Ltd.* (2013) 222 Cal.App.4th 945, 961.)

Accordingly, any of Cross-Complainants' claims for intentional interference in the Cross Complaint referencing the "Settlement Agreement" and/or "Easement Agreement," at issue are inapplicable to the cause of action because those agreements are contracts that PCMA is a party to, so such claims do not apply and fail to state facts sufficient for an intentional interference with contractual relations cause of action. Examples include:

In May 2024, PCMA and its new counsel intentionally interfered with the Los Palos/Zenda Owners' irrevocable, permanent, non-exclusive, appurtenant easement rights of ingress and egress as set forth in the Settlement Agreement and Easement Agreement. (Cross Complaint, pg. 7 ¶ 31), and

The Settlement Agreement and Easement Agreement between ZENDA ESTATE, ZENDA HOLDINGS and BALMORAL, and PCMA thereto are valid and binding contracts. (Cross Complaint, pg. 17 ¶ 79).

(See Cross Complaint, pg. 11 ¶ 49; pg. 12 ¶ 53, pg. 14 ¶ 58 and ¶ 59; pg. 15 ¶ 63 - 66; pg. 16 ¶ 78.)

Cross-Complainants fail to plead that a valid contract between any of the Cross-Complainants and a third party exists. The Cross Complaint states that “[w]hen ZENDA ESTATE sells the ZENDA ESTATE Property,” and “[i]f ZENDA HOLDINGS decides to sell the Property and/or if BALMORAL decides to develop the land . . .” all must disclose to all potential purchasers the existence of pending litigation regarding the Settlement and Easement Agreements, as well as the filed and released pendency of actions, PCMA’s Cross Complaint regarding the Settlement and Easement Agreement allegations towards Cross-Complainants, the alleged actions of individual HOA members, and the enforcement of the Settlement Agreement all render the properties “unsalable.” (Cross Complaint, pg. 10-11 ¶ 47; pg. 13 ¶ 54 – 57).

As noted by PCMA, the Cross Complaint also states that In May 2022, HARRIES put the HARRIES Property on the market for sale for \$2,700,000.00. Thereafter, the HARRIES received inquiries from real estate agents and potential purchasers about short term rentals and temporary use permits. Because the HARRIES were statutorily obligated to make certain disclosures, the HARRIES took their Property off the market . . . and further explains that the HARRIES “must now disclose the following to all potential purchasers . . .” reiterating the same points made as to Zenda Estates, Zenda Holdings, and Balmoral. (Cross Complaint, pg. 11 ¶ 50; pg. 12 ¶ 51).

The Cross Complaint continuously raises inapplicable claims by stating that Zenda Holdings stopped all short term rentals and events in 2024, and that Balmoral placed development plans which could now be cancelled “because of the litigation and unlawful recording of the Notice of Pendency of Action by PCMA.” (Cross Complaint, pg. 13 ¶¶ 54 -57).

The second element is not properly alleged. First, all of the contracts alleged are speculative, prospective contracts and not valid binding contracts, and second the allegations contain mere statements of knowledge with no facts.

The Cross Complaint alleges that “PCMA knew, understood and acknowledge that in or about February 2022, ZENDA ESTATE began applying for and receiving Permits from the City of Indio which allowed ZENDA ESTATE to rent the Property for Events . . .” (Cross Complaint, pg. 17 ¶ 80). The Cross Complaint also states that “PCMA knew, understood and acknowledge commencing in 2021, ZENDA HOLDINGS previously had applied for Permits from the City of Indio which allowed ZENDA HOLDINGS to rent the Property for Events [. . .]” (Cross Complaint, pg. 17 ¶ 82). Finally, the Cross Complaint makes a similar claim when stating that “PCMA knew, understood and acknowledge commencing in 2021, that BALMORAL was going to development the BALMORAL Property inclusive of, but not limited to, the construction of a small high-end residential development.” (Cross Complaint, pg. 18 ¶ 84). The allegations in the Cross Complaint simply allege that PCMA had knowledge of Zenda Estates’, Zenda Holdings’, and Balmoral’s contractual intentions without further facts to plead how PCMA had knowledge of the speculative contracts and to what extent if any.

“[A] cause of action for intentional interference with [a] contract requires an underlying enforceable contract. Where there is no existing, enforceable contract, only a claim for interference with prospective advantage may be pleaded.” (*PMC, Inc. v. Saban Entertainment, Inc.* (1996) 45 Cal.App.4th 579, 601.)

As to intentional acts and breach, these elements are not alleged because all of the contractual relationships alleged are speculative, prospective, and not valid binding contracts, and second because the allegations contain mere conclusory statements of interference with no facts as to how the alleged acts were designed to induce a breach or disruption of such relationships. The

Cross Complaint claims that “[w]ith knowledge that the ZENDA ESTATE [and the ZENDA HOLDINGS] applied and received Permits from the City of Indio which allowed ZENDA ESTATE [and the ZENDA HOLDINGS] to rent the Property for Events . . . PCMA interfered with those contracts between ZENDA ESTATE [and the ZENDA HOLDINGS] and those clients for certain [. . . events . . .]” (Cross Complaint, pg. 17 ¶ 81, ¶ 83).

Accordingly, the Cross Complaint fails to state facts sufficient to claim that PCMA’s alleged acts were intentional, were designed to induce a breach or disruption of the speculative contractual relationship between Zenda Estates or Zenda Holdings and the “clients” for the event rentals, and fails to intelligibly plead what allegedly interfering acts occurred on behalf of PCMA that lead to or induced a breach of the contractual relationships of such clients. The Cross Complaint further alleges that “[w]ith knowledge that BALMORAL was going to develop the BALMORAL Property inclusive of the construction of a small high-end residential development, PCMA interfered with BALMORAL’s construction by interfering the Settlement Agreement and Easement Agreement,” and as established above, a claim for intentional interference with contractual relations does not apply where it is claimed that the contracting party is allegedly interfering with its own contract. (Cross Complaint, pg. 18 ¶ 85) (*Asahi Kasei Pharma Corp.*, *supra*, 222 Cal.App.4th at p. 961.)

Even in an attempt to construe this allegation in the most liberal light possible, Cross-Complainants’ allegation here only points to prospective contractual relationships involving the respective parties, which furthers PCMA’s argument that Cross-Complainants facts are uncertain and unintelligible. Third, Cross-Complainants argue that PCMA had knowledge that Balmoral “would be developing the BALMORAL Property” and thus “PCMA interfered with BALMORAL’s construction by interfering the Settlement Agreement and Easement Agreement.” (MTD Opp., pg. 6.) Again, PCMA is left confused as to what facts were “properly” pled by Cross-Complainants to meet the elements of an Intentional Interference with Contractual Relations claim. PCMA’s alleged knowledge of Balmoral’s intentions to develop its respective property at some point in time in the future is an allegation that cannot be pled to prove a valid contract existed or that PCMA had knowledge of a valid contract between Balmoral and a third party regarding construction because this claimed contractual relationship is speculative and prospective at most. (MTD Opp., pg. 6.) Also, Cross-Complainants arguments of PCMA’s alleged interference with the Settlement Agreement and Easement Agreement are insufficient to meet any elements of an Intentional Interference with Contractual Relations claim because as discussed in PCMA’s Special Demurrer, “[a] contracting party cannot be held liable in tort for conspiracy to interfere with its own contract.” (*Asahi Kasei Pharma Corp. v. Actelion Ltd.* (2013) 222 Cal.App.4th 945, 961.) (PCMA MTD, pg. 6; MTD Opp., pg. 6.) Therefore, any of Cross-Complainants’ claims that PCMA intentionally interfered with the Settlement Agreement and/or Easement Agreement are inapplicable to the Second Cause of Action because those agreements are contracts that PCMA is a party to, so such claims do not apply and fail to state facts sufficient for an intentional interference with contractual relations cause of action. (PCMA MTD, pg. 6-7.) SUSTAINED

3rd Cause of Action - Intentional interference with prospective advantage

A claim for intentional interference with prospective economic advantage must contain five elements: “(1) the existence, between the plaintiff and some third party, of an economic relationship that contains the probability of future economic benefit to the plaintiff; (2) the defendant’s knowledge of the relationship; (3) intentionally wrongful acts designed to disrupt the relationship; (4) actual disruption of the relationship; and (5) economic harm proximately caused by the defendant’s action.” (*Roy Allan Slurry Seal, Inc. v. American Asphalt South, Inc.* (2017) 2 Cal.5th 505, 512 [213 Cal.Rptr.3d 568, 388 P.3d 800].)

Since the Cross Complaint contains nearly an exact replica of allegations in both the second and third causes of action (including the same exact numbering of the paragraphs), and since the

elements for the causes of action are inherently similar if not identical, PCMA states that arguments for elements two through five shall be incorporated in this argument and enhanced herein, except as to the first element because Cross-Complainants' ambiguous contractual relationships do not require proof in prospective advantage claims. (*Pacific Gas & Electric Co.*, *supra*, 50 Cal.3d at p. 1126.) (See Cross Complaint, pgs. 16 – 18 ¶ 78 – 87, and pgs. 18-20 ¶ 78 – 87). SUSTAINED

5th Cause of Action - Invasion of privacy.

A cause of action for invasion of privacy consists of two elements: “(1) intrusion into a private place, conversation of matter, (2) in a manner highly offensive to a reasonable person.” (*Sanders v. American Broadcasting Co.* (1999) 20 Cal.4th 907, 914 (internal citations omitted).) As to the first element, the Cross-Complainants must prove that the Cross-Defendant intruded “some zone of physical or sensory privacy surrounding, or obtained unwanted access to data about, the plaintiff,” but the element is not met merely when the plaintiff has been “observed, or even photographed or recorded, in a public place.” (*Sanders*, *supra*, 20 Cal.4th at p. 914-915.)

Cross-Complainants allege that “On July 1, 2025, PCMA installed a video camera and listening device outside the entrance to the Los Palos/Zenda Properties in order to illegally monitor persons entering and exiting the Los Palos/Zenda Properties.” (Cross Complaint, pg. 10 ¶ 43). Cross-Complainants also allege that “On July 1, 2025, PCMA installed a video camera and listening device outside the entrance to the LOS PALOS/ZENDA Development in order to illegally monitor persons entering and exiting the LOS PALOS/ZENDA Development.” (Cross Complaint, pg. 22 ¶ 85). Further, the Cross Complaint claims that “The Los Palos/Zenda Properties is walled and gated for the privacy of owners and their guests. PCMA installed video cameras pointed at the Los Palos/Zenda Properties for the sole purpose of harassing and intimidating the Los Palos/Zenda Owners and their guests to gain leverage in the civil litigation.” (Cross Complaint, pg. 10 ¶ 44).

In addition, the Cross Complaint states that “The video cameras and listening devices installed and maintained by PCMA intentionally intruded on [. . . Cross Complainants'] respective properties.” (Cross Complaint, pg. 22 ¶ 89). Cross-Complainants fail to plead the location of the alleged devices with certainty as the cross complaint has repeatedly referred to the alleged devices as installed “outside the entrance to the [LPZ] Properties,” and “outside the entrance to the [LPZ] Development,” and also as claiming that the LPZ Properties are “walled and gated for the privacy of owners,” but then stating the alleged devices intruded on LPZ owners' “respective properties.” (Cross Complaint, pg. 10 ¶ 43 and ¶ 44; pg. 22 ¶ 85 and ¶ 89). The Cross Complaint is ambiguous as to the location of the alleged devices, and by inconsistently claiming that the alleged devices are outside the entrance gates of the LPZ properties, while also claiming that the alleged devices are outside the entrance of the LPZ development, so the true location or even proximate location is left to the imagination, thereby creating uncertainty in the private place that was allegedly intruded upon.

Also, as discussed by Cross-Defendant, to further create uncertainty, Cross-Complainants inconsistently claim that the LPZ properties are walled and gated for privacy, that the alleged devices were pointed at the LPZ properties, and intruded upon LPZ owners' respective properties, while maintaining in several paragraphs throughout the Cross Complaint that the alleged devices were installed outside the entrance of the LPZ properties/development in order to monitor people entering and/or exiting the development. (Cross Complaint, pg. 10 ¶ 43, ¶ 44, ¶ 45; pg. 22 ¶ 85 and ¶ 89). Cross-Complainants claims create uncertainty as to whether the alleged devices could intrude upon the LPZ owners' properties considering the claim that the LPZ development is “walled and gated,” and whether the alleged devices were capable of intruding upon the LPZ properties considering that the alleged devices were installed “outside the entrance of the [LPZ]

Properties . . . to monitor persons entering and exiting,” therefore, it is not likely that any of the LPZ residences exists outside the walled/gated enclosure outside the entrance of the development where the alleged devices have been allegedly installed. (Cross Complaint, pg. 10 ¶ 44, pg. 22 ¶ 85). Thus, the Cross Complaint fails to plead with specificity as to the location of the alleged devices that could meet the first element of an invasion of privacy claim.

The first element of an invasion of privacy cause of action also fails as the alleged intrusion occurs in a public place. (*Sanders, supra*, 20 Cal.4th at p. 914-915.) Cross-Complainants’ redundant reference to the entrance “OUTSIDE” the LPZ development, where the alleged devices were installed to allegedly monitor persons “ENTERING AND EXITING” the development, suggests that the alleged devices were installed in a manner to capture information in a public place. (Cross Complaint, pg. 10 ¶ 44, pg. 22 ¶ 85). The Cross Complaint discusses that the LPZ development itself is walled and gated for privacy, however, the Cross Complaint fails to state a claim as to how the area outside the entrance of the LPZ development is private. (Cross Complaint, pg. 10 ¶ 44).

Also, as to the first element, the Cross-Complainants must show an objectively reasonable expectation of privacy. In determining whether a reasonable expectation of privacy exists, courts have considered factors such as “(1) the identity of the intruder, (2) the extent to which other persons had access to the subject place, and could see or hear the plaintiff, and (3) the means by which the intrusion occurred.” (*Hernandez v. Hillsides, Inc.* (2009) 47 Cal.4th 272, 286-287.) The Cross-Complainants merely claiming that LPZ owners “had a reasonable expectation of privacy in each own their respective property as legally described herein,” is not factually sufficient to constitute a cause of action for an invasion of privacy as the allegations of intrusion are based upon an ambiguous location that does not interfere with the LPZ properties, but instead outside the entrance of the development as claimed and quoted above, and the considered factors indicating a reasonable expectation of privacy have not been plead, nor has the Cross Complaint “legally described herein,” and certain or intelligible descriptions. (Cross Complaint, pg. 22 ¶ 83).

The Cross Complaint fails to state facts sufficient to constitute a cause of action as to the first element by claiming that “HOA members (some drunk) have harassed Los Palos/Zenda Owners, young women working the gates at events,” which does not clearly indicate that PCMA is the intruder in the alleged activities, nor how the “HOA members” described were operating under the scope of authority of PCMA during the course of the alleged activities, thereby creating uncertainty as to how this allegation applies to PCMA. (Cross Complaint, pg. 11 ¶ 47(d); pg. 12 ¶ 51(e); pg. 13 ¶ 56(d)). Second, the Cross Complaint fails to state facts sufficient to address the extent to which PCMA had access to the private area due to the lack of certainty as to the location with only the mere reference to the alleged devices placed “outside the entrance to the Los Palos/Zenda Properties,” and without more facts the second element is not met because the extent of access outside the entrance of the development is not a private place. (Cross Complaint, pg. 10 ¶ 46). Third, the Cross Complaint fails to state facts sufficient to address the means by which the intrusion occurred where the Cross Complaint only repeatedly alleges that “PCMA installed a video camera and listening device outside the entrance to the LOS PALOS/ZENDA Development in order to illegally monitor persons entering and exiting the LOS PALOS/ZENDA Development,” which fails to indicate how the installation of the alleged devices and their alleged activities constitute an intrusion. (Cross Complaint, pg. 22 ¶ 85).

Finally, the Cross-Complainants surplusage language in redundantly asserting that PCMA’s installed the alleged devices “for the purpose of harassing and intimidating the Los Palos/Zenda Owners and their guests to gain leverage in the civil litigation,” is conclusory, and does not state a fact or plead with specificity as to any element of an invasion of privacy claim. (Cross Complaint, pg. 10 ¶ 45; pg. 15 ¶ 65 and ¶ 66). SUSTAINED

3.

CASE #	CASE NAME	HEARING NAME
CVPS2407985	ZENDA ESTATE, LLC VS POLO CLUB MAINTENANCE ASSOCIATION	CROSS-DEFENDANT POLO CLUB MAINTENANCE ASSOCIATION'S NOTICE OF ANTI-SLAPP, SPECIAL MOTION TO STRIKE CROSS COMPLAINT

Tentative Ruling: Granted.

Attorney fees portion of Anti SLAPP is continued to Friday, August 21, 2026 at 8:30 a.m., Department PS2.

Moving party to provide notice pursuant to CCP 1019.5.

This action arises from the alleged injuries of Zenda Estates' April 24, 2025, Second Amended Complaint ("SAC") for: (1) Breach of Contract and (2) Declaratory Relief regarding the Settlement Agreement and Easement Agreement between Zenda Estates and PCMA. (Attached hereto as Exhibit "A" of the Request for Judicial Notice filed concurrently herewith.)

PCMA filed a Verified Third Amended Cross Complaint ("VTACC") on November 6, 2025, against Cross-Complainants and other Defendants alleging eight causes of action: (1) Breach of Contract, (2) Quiet Title, (3) Enforcement of Easement, (4) Express Indemnity, (5) Equitable Indemnity, (6) Declaratory Relief, (7) Petition for Writ of Mandate, and (8) Declaratory Relief C.C.P. § 526(a). (attached hereto as Exhibit "B" of the Request for Judicial Notice filed concurrently herewith.)

On January 23, 2026, Cross-Complainants filed the instant Cross Complaint alleging five causes of action: (1) Breach of Contract, (2) Interference with Contractual Relations, (3) Interference with Prospective Advantage, (4) Slander of Title, and (5) Invasion of Privacy. (Attached hereto as Exhibit "F" of the Request for Judicial Notice filed concurrently herewith.)

Cross-Defendant PCMA now moves to strike the 4th cause of action for slander of title in the cross-complaint filed on January 23, 2026, as well as the allegations referenced in the motion. This motion is made on the ground that the allegations and 4th cause of action for slander of title arise out of PCMA's constitutionally protected speech and petition and because Cross-Complainants cannot demonstrate a probability of prevailing on the merits. PCMA also seeks dismissal of the 4th cause of action as well as an award of attorney's fees and costs in connection with this special motion to strike pursuant to CCP § 425.16(c)(1).)

Request for Judicial Notice (RJN)

PCMA asks the Court to take judicial notice of:

Exhibit A – Second Amended Complaint filed on April 24, 2025 to case number CVPS2407985 with the Riverside Superior Court;

Exhibit B – Verified Third Amended Cross Complaint filed by PCMA on November 6, 2025 to case number CVPS2407985 with the Riverside Superior Court;

Exhibit C – Court's Ruling on Motion to Expunge Lis Pendens, filed on September 29, 2025 to case number CVPS2407985 with the Riverside Superior Court;

Exhibit D – Court’s Ruling on Demurrer to Third Amended Cross Complaint filed on January 6, 2026 to case number CVPS2407985 with the Riverside Superior Court;

Exhibit E – Notices of Pendency of Action filed on June 10, 2025 and June 26, 2025; and Releases of Lis Pendens filed on October 20, 2025, to case number CVPS2407985 with the Riverside Superior Court; and

Exhibit F – Zenda Estate’s Cross Complaint filed on January 23, 2026, to case number CVPS2407985 with the Riverside Superior Court.

Exhibits A-F are judicially noticed (Ev. Code § 452(d), (g) and (f).)

Objections to moving declarations

Cross-Complainants allege that the declarations of Shawn Stoller and Rick L. Rapp are insufficient based on the semantic differences between declarants' "personal knowledge" and their "knowledge and belief," as well as semantics regarding declarants' competent abilities to testify. (Anti-SLAPP Opp., pg. 11-12.) However, Cross-Complainants' objections to these declarations have been waived because pursuant California Rules of Court 3.1354, written objections to evidence must be served and filed at the same time as the objecting party's opposition. Despite this waiver, the declarations of Rick L. Rapp and Shawn Stoller are proper evidence in defending against an Anti-SLAPP motion as executed pursuant to California Code of Civil Procedure § 2015.5. (*Sweetwater Union High School Dist. v. Gilbane Building Co.* (2019) 6 Ca1.5th 931.)

Anti SLAPP

As a general rule, when a cause of action arises out of the furtherance of a defendant’s right of petition or free speech in connection with a public issue, it is subject to a special motion to strike. (CCP § 425.16(b)(1).) An “act in furtherance of a person’s right of petition or free speech” ... includes ... any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest, or ... any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest.” (CCP § 425.16(e)(3)-(4).) Importantly, however, “[t]he anti-SLAPP statute does not insulate defendants from *any* liability for claims arising from the protected rights of petition or speech. It only provides a procedure for weeding out, at an early stage, *meritless* claims arising from protected activity.” (*Baral v. Schnitt* (2016) 1 Cal.5th 376, 384 [emphasis in the original]; see also Thus, courts use a two-step evaluation to determine whether an action is a SLAPP suit subject to a special motion to strike: (1) the plaintiff’s claim must arise out of the defendant’s protected speech or petitioning; and (2) the defendant’s claim lacks even minimal merit. (*Navellier v. Sletten*, (2009) 29 Cal.4th 82, 88-89; see also *Bonni v. St. Joseph Health System* (2021) 11 Cal.5th 995, 1009-11; *Ericsson GE Mobile Communications, Inc. v. C.S.I. Telecommunications Engineers* (1996) 49 Cal.App.4th 1591, 1601, 1603.)

The moving party bears the initial burden of showing that the action falls within the class of suits subject to the special motion to strike. (*Wilcox v. Superior Court* (1994) 17 Cal.App.4th 809, 819.) To meet the initial burden, a defendant need only show that the complaint “*arises from*” defendant’s exercise of free speech or petition rights as defined in §425.16(e). (*Equilon Enterprises, LLC v. Consumer Cause, Inc.* (2002) 29 Cal.4th 53, 61.) The act which forms the basis for the cross-claimant’s cause of action must itself have been an act in furtherance of the right of petition or free speech. (*City of Cotati v. Cashman* (2002) 29 Cal.4th 69, 76-78.) Once the defendant makes such a prima facie showing, the burden shifts to the plaintiff to establish a “probability” that it will prevail on whatever claims are asserted against the moving defendant. (CCP § 425.16(b); *Navellier, supra*, 29 Cal.4th at 89, 93.)

“Arising from” means that the defendant’s act underlying the plaintiff’s causes of action must *itself* have been an act in furtherance of the right of petition or free speech. (*City of Cotati, supra*, 29 Cal.4th at 78.) In other words, “the critical consideration is whether the cause of action is *based on* the defendant’s protected free speech or petitioning activity.” (*Navellier, supra*, 29 Cal.4th at 89.) Whether the anti-SLAPP statute applies is determined by the “principal thrust or gravamen” of the plaintiff’s claims; it cannot be invoked where the allegations of protected activity are only *incidental* to a cause of action based on nonprotected activity. (*Martinez v. Metabolife Int’l, Inc.* (2003) 113 Cal.App.4th 181, 187.) “If the core injury-causing conduct on which plaintiff’s claim is premised does not rest on protected speech, collateral or incidental allusions to protected activity will not trigger application of the anti-SLAPP statute.” (*Trilogy at Glen Ivy Maintenance Assn. v. Shea Homes, Inc.* (2015) 235 Cal.App.4th 361, 368 [*citing Martinez, supra*, 113 Cal.App.4th at 189].) “To determine the applicability of . . . the anti-SLAPP statute, [courts] look to the gravamen of the instant action. . . . [T]he gravamen of an action is the *allegedly wrongful and injury-producing conduct*, not the damage which flows from said conduct.” (*Renewable Resources Coalition, Inc. v. Pebble Mines Corp.* (2013) 218 Cal.App.4th 384, 387 [*italics in original*]; *accord Trapp v. Naiman* (2013) 218 Cal.App.4th 113, 121. The mere fact that an action was filed after protected activity took place does not mean that the action arose from that activity for the purposes of the anti-SLAPP statute. (*City of Coati, supra*, 29 Cal.4th at 76-78.) A cause of action that arguably may have been “triggered” by protected activity does not mean that it is one arising from such. (*Id.* at 78.)

An Anti-SLAPP motion “may be filed within 60 days of service of the complaint.” (C.C.P. § 425.16(f).) Cross-Complainants filed and served the Cross Complaint on January 23, 2026. (See Exhibit “F”)

Here, the instant motion, filed on March 24, is timely.

Protected Activity

Here, the filing of a cross-complaint and notices of pendency of action are activities that are expressly protected under the Anti-SLAPP statute and the claims in the cross-complainants’ cross-complaint are based on allegations arising from those activities. The Cross Complaint clearly attempts to chill the right of petition by raising allegations that directly reference the pleadings and notices filed by PCMA as elements to their causes of action (all allegations were incorporated into all causes of action). For example, Cross-Complainants introduce their allegations by stating that “On or about June 2, 2025, PCMA filed a Cross-Complaint against CROSS-COMPLAINANTS, among other Cross-Defendants.” (Cross Complaint, ¶ 35, pg. 8.) The Cross Complaint further references the direct quotes and inferences from PCMA’s Verified Third Amended Cross-Complaint (“VTACC”) and previously recorded (and withdrawn) Notices of Pendency of Action against all Cross-Complainants as allegations supporting all five of their causes of action (despite relevancy to all causes of action pled) as fully quoted in the above Motion. (Cross Complaint, ¶ 36, pg. 8; ¶ 39, pgs. 8 – 9; ¶ 40, pg. 9; ¶ 41, pg. 9, and ¶ 76, pg. 20; ¶ 42, pg. 10, and ¶ 77, pg. 20; fn. 3, pg. 10; ¶ 47, pgs. 10 – 11; ¶ 48, pg. 11; ¶ 49, pg. 11; ¶ 50, pg. 11; ¶ 51, pg. 12; ¶ 52, pg. 12; ¶ 53, pg. 12; ¶ 54, pg. 13; ¶ 55, pg. 13; ¶ 56, pg. 13; ¶ 57, pg. 13; ¶ 58, pg. 14; ¶ 59, pg. 14; ¶ 60, pg. 14; ¶ 63, pg. 15; ¶ 64, pg. 15; ¶ 75, pg. 20; ¶ 78, pg. 21; ¶ 79, pg. 21; ¶ 81, pg. 21.)

Also, the Cal. Supreme Court found that CCP § 47(b) provides privilege to the filing of a notice of lis pendens by stating that “It is our opinion that the privilege applies to any publication, such as the recordation of a notice of lis pendens, that is required (e.g., Code Civ. Proc., § 749) or permitted (e.g., Code Civ. Proc., § 409) by law in the course of a judicial proceeding to achieve the objects of the litigation, even though the publication is made outside the courtroom and no function of the court of its officers is invoked.” (*Frank Pisano & Associates v. Taggart* (1972) 29 Cal.App.3d 1, 25, quoting *Albertson v. Raboff* (1956) 46 Cal.2d 375, 381 (disapproved in part by

La Jolla Group II v. Bruce (2012) 211 Cal.App.4th 461, 473, clarifying that the 1992 amendment to C.C.P. § 47 partially abrogated the absolute privilege and provides that the recording of a lis pendens is not privileged unless it identifies a previously filed action in a court with jurisdiction that affects title or possession of real property.) Therefore, the litigation privilege of C.C.P. § 47 is not limited to pleadings, so long as the publication “has a reasonable relation to the action and is permitted by the law, the absolute privilege attaches.” (*Frank Pisano & Associates*, supra, 29 Cal.App.3d at 25, quoting *Albertson*, supra, 46 Cal.2d at 380-381.)

The petitions filed on behalf of PCMA are of public significance because the initial source of the pending litigation of this case arises from the issue of PCMA’s rights in real property contracted to between the homeowners association (PCMA) and residents of the development. Thus, PCMA’s VTACC and Notices of Lis Pendens are protected activity that fall under the litigation privilege pursuant to C.C.P. § 47 and C.C.P. § 425.16.

The 4th cause of action for slander of title violates the protected activity afforded to PCMA under the Anti-SLAPP statute based on PCMA’s filing of a cross-complaint and notices of pendency of action. The basic elements for a Slander of Title cause of action include: “(1) a publication, (2) which is without privilege or justification, (3) which is false, and (4) which causes direct and immediate pecuniary loss.” (*Alpha & Omega Development, LP v. Whillock Contracting, Inc.* (2011) 200 Cal.App.4th 656, 664; *Finch Aerospace Corp. v. City of San Diego* (2017) 8 Cal.App.5th 1248, 1253.) It is the defendant’s burden to show that the slander of title claim stems from protected speech or petitioning. (*Alpha & Omega Development, LP*, supra, 200 Cal.App.4th at 662.)

PCMA has met its burden to show that the slander of title claim by Cross-Complainants stems from protected petitioning because the Cross Complaint directly references (1) the VTACC filed by PCMA, and (2) the Notices of Pendency of Action filed by PCMA (Exhibit “B” and “E” of the Request for Judicial Notice filed concurrently herewith.) First, the Notices of Pendency of Action were filed by PCMA against Cross-Complainants on June 10, 2025, and June 26, 2025, in connection with the overall issue of the pending litigation regarding the Easement Agreement (See, Exhibit “E” Notices of Pendency of Action), a real property issue, to effectuate constructive notice of the pending actions beginning with the initial pleading filed by Plaintiff Zenda Estates in December of 2024, and further amended until filed on April 4, 2025, (See, Exhibit “A” Second Amended Complaint), which eventually lead to PCMA’s Cross-Complaint filed in June of 2025, and further amended until filed on November 6, 2025. (See, Exhibit “B” VTACC.) (See also, Declaration of Shawn Stoller (“Stoller Dec.”), at ¶ 4, ¶ 5, and ¶ 7.) (See also, Declaration of Rick Rapp (“Rapp Dec.”), at ¶ 4, ¶ 5, and ¶ 7.)

Consequently, the Notices of Pendency of Action filed by PCMA were in response to the real property issue brought on by Zenda Estates and supplemental to PCMA’s real property issue as addressed in PCMA’s initial Cross-Complaint. Since the litigation privilege of C.C.P. § 47(b) extends to lis pendens if it “(1) identifies an action ‘previously filed’ in a court of competent jurisdiction that (2) affects title or right of possession of real property” then the privilege applies here because PCMA’s actions in recording the lis pendens against Cross-Complainants clearly identified the pending action and requested Quiet Title to the rights afforded in the Easement Agreement based on PCMA’s rights at issue from Zenda Estates’ initial complaint. (See, Exhibits “A” and “B”) (*Alpha & Omega Development, LP*, supra, 200 Cal.App.4th at 665; *La Jolla Group II*, supra, 211 Cal.App.4th at 476, internal citations omitted.) Also, by association and independently, the Cross-Complaint filed by PCMA is also subject to the litigation privilege and is considered protected activity pursuant to C.C.P. § 47 and § 425.16. Thus, neither the VTACC filed by PCMA nor the recorded (and later withdrawn) Notices of Pendency of Action satisfy the second basic and necessary element of a Slander of Title cause of action because the petitions are privileged.

In the Opposition, Cross-Complainants refer to the Court's Final Ruling on the Motions to Expunge the Lis Pendens to imply that because PCMA's Notices of Pendency of Action were denied, then that automatically means that the lis pendens were improperly recorded. (Anti-SLAPP Opp., pg. 2-3, ¶ 1.) For example, Cross-Complainants reference the Court's Final Ruling of the Motion to Expunge the Lis Pendens, which states that "PCMA has failed to establish by a preponderance of evidence that it will prevail on its real property claim," although Cross-Complainants have twisted the Court's ruling here to imply that since PCMA failed to establish that it will prevail on its real property claim in its attempt to record Notices of Pendency of Action, then somehow those filings were improper. (Anti-SLAPP Opp., pg. 8.) By that logic, any litigant that files a lawsuit yet obtains a judgment favorable to the opposing party is at risk of a countersuit for frivolous litigation.

Further, Cross-Complainants alleges that "[a]n improperly recorded Notice of Pendency of Action could support a claim for slander of title and/or even interference with prospective advantage arising, for instance, out of the property owner's inability to perform under a contract for the sale of the property due to the Notice of Pendency of Action clouding title," but unfortunately, Cross-Complainants failed to provide a citation as to where such a claim is made in law or fact thereby preventing PCMA from responding to this claim. (Anti-SLAPP Opp., pg. 3,11 1.) Cross-Complainants fail to prove that the Court's Final Ruling regarding the Motions to Expunge the Lis Pendens clearly categorized PCMA's filings of lis pendens as improper recordings, and while PCMA may have failed to establish that it would prevail on its real property claim, the claim still does affect real property as required by California Code of Civil Procedure § 47(b)(4).

At the suggestion of Cross-Complainants that prior to filing a Notice of Pendency of Action, the "pleader and its counsel should spend a bit more time identifying the 'real property' claim," PCMA points to how California law defines a real property claim. (Anti-SLAPP Opp., pg. 8.) A real property claim exists where "the cause or causes of action in a pleading which would, if meritorious, affect (a) title to, or the right to possession of, specific real property or (b) the use of an easement identified in the pleading, other than an easement obtained pursuant to statute by any regulated public utility." (Cal. Civ. Proc. Code § 405.4.) The Easement Agreement between PCMA and Cross-Complainants is one of the main issues at dispute in this action and has been the heart of this action since the beginning as indicated in all of Cross-Complainants' filings, thus, the lis pendens recorded by PCMA identified a previously-filed action affecting the title to or right of possession of real property as authorized by law with this Court, thereby affording those filings protection under the litigation privilege. (Cal. Civ. Proc. Code § 47(b)(4).) Cross-Complainants point to a case cited in PCMA's Special Motion to Strike (Anti-SLAPP) in an attempt to infer that recording a lis pendens is not protected activity and is only afforded an absolute privilege under very limited circumstances. (*Alpha & Omega Development, LP v. Whillock Contracting, Inc.* (2011) 200 Cal.App.4th 656.) In *Alpha & Omega Development LP v. Whillock Contracting, Inc.*, the Court stated that the Alpha "understandably conceded" that Whillock's burden to show the slander of title cause of action arose from its furtherance of rights of petition or free speech in filing a lis pendens which fell within the meanings of the California Code of Civil Procedure § 425.16(b)(1) and (e). (Id. at 660.) The Court pointed to the trial court's reasoning that Alpha could not show a probability of prevailing on its slander of title claim because Whillock had met its burden of showing that the lis pendens is protected by the litigation privilege since the action was a complaint for foreclosure of a mechanic's lien, thus "this privilege is absolute and applies to all publications irrespective of the maliciousness and on these grounds, defendants are not liable for slander of title." (Id. at 662.) The litigation privilege of C.C.P. § 47(b) extends to lis pendens if it "(1) identifies an action 'previously filed' in a court of competent jurisdiction that (2) affects title or right of possession of real property" then the privilege applies here because PCMA's actions in recording the lis pendens against Cross-Complainants clearly identified the pending action and requested Quiet Title to the rights afforded in the Easement Agreement based on PCMA's rights at issue from Zenda Estates' initial complaint. (Id. at 665; PCMA Anti-SLAPP, pg. 26.) Also, by

association and independently, the Cross-Complaint filed by PCMA is also subject to the litigation privilege and is considered protected activity pursuant to C.C.P. § 47 and § 425.16.

Accordingly, neither the VTACC filed by PCMA nor the recorded (and later withdrawn) Notices of Pendency of Action satisfy the second requisite element of a Slander of Title cause of action because the petitions are privileged.

PCMA's Special Motion to Strike (Anti-SLAPP) as applied to any reference of the VTACC from the Fourth Cause of Action for Slander of Title in the Cross-Complaint is not opposed by Cross-Complainants. (PCMA Anti-SLAPP, pg. 22-28.)

Probability of Prevailing on Merits

Cross-Defendants met their initial burden on this motion of showing that the cross-complaint arises from protected activity. The burden shifts to Cross-Complainants to show, by admissible evidence, a reasonably probability of prevailing.

Slander of Title Claim

In addition to the discussion of the 4th cause of action for slander of title, above, to further establish a claim for Slander of Title, a plaintiff must prove that (1) the defendant made a statement/publication that casts doubt about plaintiff's ownership of property; (2) the statement/publication was made to a person other than the plaintiff; (3) the statement was false and the plaintiff did in fact own the property; (4) the defendant knew/acted with reckless disregard of the truth or falsity as to whether the plaintiff owned the property; (5) the defendant knew or should have recognized that someone else might act in reliance on the statement/publication, causing plaintiff financial loss; (6) the defendant did in fact suffer immediate and direct financial harm because someone else acted in reliance on the statement/publication, or by incurring legal expenses necessary to remove the doubt case by the statement/publication; and (7) the defendant's conduct was a substantial factor in causing the plaintiff's harm. (See CACI 1730. Slander of Title – Essential Factual Elements.)

Even if by some chance the litigation privilege failed to cover the VTACC and the recorded Notices of Pendency of Action filed by PCMA, the Cross-Complainants' claim for Slander of Title would still fail because plaintiff's have yet to show, and will likely be unable to show, a probability of prevailing on the claim. Cross-Complainants have failed to show in their Cross Complaint or supporting exhibits any malicious intent behind PCMA's petitions, and mere allegations of falsity are not enough to prove that false statements were recorded in the petitions, nor are the allegations enough to show that the filing of such petitions was conducted with ill intent, despite falsehoods.

For example, Cross-Complainants repeatedly stated inflated allegations by claiming that: "without any legal justification, PCMA recorded Notices of Pendency of Action," (Cross Complaint, ¶ 36, pg. 8) and "PCMA made unverified and false statements in the [VTACC]," (Cross Complaint, ¶ 39, pgs. 8-9; ¶ 40, pg. 9) and "unlawful recording of Notices of Pendency of Action," (Cross Complaint, ¶ 49, pg. 11; ¶ 53, pg. 12; ¶ 54, pg. 13; ¶ 55, pg. 13; ¶ 58, pg. 14; ¶ 59, pg. 14) and even "recording of the false and fraudulent Notices of Pendency of Actions," (Cross Complaint, ¶ 63, pg. 15; ¶ 64, pg. 15). Also on the list of inflated allegations claimed by Cross-Complainants is the plaint statement that "[t]he damages to date suffered by Gale Futterman is severe emotional stress and anxiety brought on by the tens of false allegations by PCMA" without reference to any specific "false" allegations made by PCMA, just a simple statement leaving the defendants and the Court to guess whether the so-called damages stem from PCMA's petitions or not. (Cross Complaint, ¶ 60, pg. 14.) Not only are these allegations from the Cross Complaint prejudicial to

PCMA's right to petition and efforts to achieve the objects of its litigation, but these statements are also intended to chill PCMA's right to petition against Cross-Complainants.

The Cross Complaint further alleges that "the Court granted ZENDA ESTATE and HARRIES Motion to Expunge Pendency of Action holding that PCMA failed to provide any argument that it would prevail on its real property claims[.]" however, PCMA's lack of success in challenging the lis pendens and subsequent withdrawals does not equate to false filing of the Notices of Pendency of Action and does not equate malicious intent (Cross Complaint, ¶ 41, pg. 9; ¶ 76, pg. 20.) As indicated in Exhibit E, the Notices of Pendency of Action were filed requesting "to Quiet Title with respect to the rights set forth in the easement affecting Real Property," and briefly stated the facts of the dispute as outlined in pending litigation, but no allegations were included to infer falsity or malice. (See, Exhibit "E", pg. 2 of each filing.) (See also, Stoller Dec., at ¶ 4, ¶ 5, and ¶ 7.) (See also, Rapp Dec., at ¶ 4, ¶ 5, and ¶ 7.)

First, filing a police report that is expressly protected under the Anti-SLAPP statute and the claims in the Cross-Complaint are based on allegations arising from those activities. In *Case Title v. Sdsu Aztec Rec. Ctr. Arc* (2022) Cal. Super. LEXIS 16140, the Court explained that plaintiff's allegation of defendant complaining to police is what brought the cross-complaint within the SLAPP statute because the law finds that communications to the police are well within the statute since such communications fall under C.C.P. § 425.16(e)(1) and (2). (*Case Title v. Sdsu Aztec Rec. Ctr. Arc* (2022) Cal. Super. LEXIS 16140, *3-4 (Cal. Super. Ct. April 15, 2022); *Comstock v. Aber* (2012) 212 Cal.App.4th 931, 941-941; referencing *Lee v. Fick* (2005) 135 Cal.App.4th 89, 97 [complaint to the government is itself "part of the official proceedings"].)

In the present matter, Cross-Complaints allege that "HOA members (some drunk) have harassed Los Palos/Zenda Owners, young women working the gates at events and made hundreds of false statements online and to the Indio Police Department about the Los Palos/Zenda Owners and their properties;" and this allegation appears to have been exactly copied and pasted in three parts of the Cross Complaint as a claim on behalf of three of the Cross-Complainants. (Cross Complaint, ¶ 47(d), pgs. 10-11; ¶ 51(e), pg. 12; ¶ 56(d), pg. 13.) Thus, the allegation that HOA members made hundreds of false statements to the Indio Police Department are directly related to the Cross-Complainants' purpose of bringing this Cross Complaint, which is to chill the speech of PCMA and HOA members from pursuing their right to report to law enforcement, thereby bringing the Cross Complaint within the SLAPP statute.

Even though causes of action that arise from false allegations are not subject to Anti-SLAPP laws, merely claiming that a report to law enforcement was made with false information is not enough to remove the protection of C.C.P. § 425.16. (*Abuemeira v. Stephens* (2016) 246 Cal.App.4th 1291, 1298, internal citations omitted.) According to the Court in *Kenne v. Stennis* 230 Cal.App.4th 953, "when allegations of making false reports are controverted, they are insufficient to render that alleged conduct unlawful as a matter of law and outside the protection of section 425.16." (*Kenne v. Stennis* (2014) 230 Cal.App.4th 953, 967; See *Chabak v. Monroy* (2007) 154 Cal.App.4th 1502, 1512 [the defendant's allegedly false report to police ... was deemed protected activity because there was not uncontroverted evidence which showed that it was false].) "Our Supreme Court has explained that, in deciding whether the initial 'arising from' requirement is met, a court considers the pleadings, and supporting and opposing affidavits stating the facts upon which the liability or defense is based." (*Case Title, supra*, Cal. Super. LEXIS 16140 at *5; quoting *Bel Air Internet, LLC v. Morales* (2018) 20 Cal.App.5th 924, 935, emphasis in original.) However, a failure to submit declarations or other evidence in support of allegations leaves the Court to rely on the information pled in the pleadings. (*Case Title, supra*, Cal. Super. LEXIS 16140 at *5.)

PCMA has formally disputed the claims that any of its petitions are false through the formerly filed Motion to Strike, but also disputes such allegations here as applicable to C.C.P. § 425.16. Despite

the fact that Cross-Complainants allegations are controverted, the allegations referring to reports made to the Indio Police Department are protected regardless of the allegedly false claims made in those reports. (See, *Kenne, supra*, 230 Cal.App.4th at 967.) Additionally, the claims made in Paragraphs 47(d), 51(e), and 56(d) of the Cross Complaint are prejudicial to PCMA because these allegations fail to be supported by any proof or at least further reference to allow PCMA to understand (1) when these allegations took place, such as prior to litigation or during the pending litigation, (2) who conducted these actions, in order to understand whether these “HOA members” were just individuals residing within the development or actual members of the PCMA Board, and (3) what statements were made to law enforcement that have been categorized as false according to Cross-Complainants. (Cross Complaint, ¶ 47(d), pgs. 10-11; ¶ 51(e), pg. 12; ¶ 56(d), pg. 13.)

Without such information to understand those basic questions, PCMA is significantly hindered from the ability to appropriately defend itself and is forced to proceed with assumptions. Assuming that the alleged police reports took place in preparation for and/or during the pending litigation, then the claims are constitutionally-protected rights of petition and free speech. Also, since the “HOA members” in the alleged claims could refer to any member residing the PCMA development, then PCMA assumes that the police reports were initiated by private individual unrelated to PCMA, without the direction of PCMA or its Board in their official capacity, and not on behalf of PCMA or its Board in their official capacity, and thus these allegations are irrelevant to the Cross Complaint against PCMA and should be stricken. (See, *Stoller Dec.*, at ¶ 6.) (See also, *Rapp Dec.*, at ¶ 6.) Finally, without any declarations or evidence of the alleged police reports referred to in the Cross Complaint, there is no information left for the Court to rely upon in determining the falsehoods claimed except for the pleading of the Cross Complaint itself. (*Case Title, supra*, Cal. Super. LEXIS 16140 at *5.) GRANTED

Attorney's Fees

CCP § 425.16, subdivision (c)(1) provides that a prevailing defendant on a special motion to strike “shall be entitled to recover his or her attorney’s fees and costs.” An award of attorneys’ fees under the Anti-SLAPP statute is mandatory, not discretionary. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1131.)

Cross-Defendants, as prevailing parties on this special motion to strike, are entitled to recover reasonable attorney’s fees and costs pursuant to CCP § 426.15(c).

In this matter, it seems that counsel is only asking for fees and costs connected to this motion, as the entire Cross-Complaint is not being dismissed through this motion.

Cross-Defendants ask for fees and costs totaling \$11,872. The Declaration of attorney Carol Baidos declares:

¶7. As a partner, my hourly rate is set at \$240 per hour. I supervise the work and billing of associate attorney Jackie Aboud, whose hourly rate is \$190 per hour.

¶8. Our records indicate that I have expended 12.3 hours of time in researching, drafting, revising and editing the present motion and supporting papers, for a total of \$ 2,952 . Attorney Aboud has spent 32 hours researching, drafting, revising and editing the present motion and supporting papers, for a total of \$ 6,080 .

¶9. It is anticipated I will expend .5 hours reviewing Zenda Estate’s Opposition to the motion, and 3 hours drafting the Reply, for a total of 3.5 hours, and \$ 840 .

¶10. It is anticipated Ms. Aboud will expend 1 hour reviewing Zenda Estate's Opposition to the motion, and 7 hours drafting the Reply, for a total of 8 hours, and \$ 1,520 .

¶11. It is anticipated I will expend 2 hours attending the hearing on this matter, for a total of \$ 480 .

¶12. In sum, our request for attorney's fees regarding this motion total \$ 11,872 .

While the amounts requested for reviewing and drafting the reply are only "anticipated," there is no further declaration supporting that these fees were actually incurred. Also, Cross-Complainants have claimed that attorney's and costs should not be imposed at all, as they claim the motion should be denied. Moving counsel is ordered to submit a supplemental declaration attesting to fees actually incurred to review the opposition and prepare the reply no later than August 3, 2026 by 4:00 p.m. PST. Cross-Complainants may oppose the fees hours and amounts if they choose by filing a supplemental opposition within 9 days of the continued hearing date on attorneys fees.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2505265	YIP VS HEDBERG CONSTRUCTION, INC.	DEMURRER ON 1ST AMENDED COMPLAINT OF GEEMAN YIP BY HEDBERG CONSTRUCTION, INC.

Tentative Ruling: Overruled.

Moving Defendant to file their answer to operative 1st Amended Complaint within 20 days of this order becoming final.

Responding party to provide notice pursuant to CCP 1019.5.

This is a home improvement dispute. Plaintiff Geeman Yip ("Plaintiff") alleges that Defendant Hedberg Construction, Inc. ("Defendant"), through its principal, Mark Hedberg, held itself out as a general contractor experienced in residential remodeling projects. Plaintiff alleges that the parties entered into a home improvement agreement in July 2022 for his 7,255-square-foot residence located at 106 Lantana View, Palm Desert, California. Plaintiff alleges that Defendant never presented a statutorily required home improvement contract despite Plaintiff asking for one, nor had Defendant provided an actual estimate of costs. Plaintiff asserts that Defendant requested a 10% security deposit totaling \$144,999.58, which exceeds the statutory limits for these contracts. Plaintiff asserts that Defendant overcharged for unjustified and unapproved items, such as billing Plaintiff for patching drywall holes mistakenly created by Defendant. Plaintiff further asserts that Defendant made representations that he would reimbursement Plaintiff for deficiencies but never did so. Plaintiff contends that Defendant failed to send estimates for approval despite promising to do so, improperly billed fees for his own son as an unqualified assistant, as well as demanded and acknowledged prepayment for work that was never completed. Plaintiff allegedly paid a total of \$2,645,268.92 over an initial budget of \$1,565,765.45.

The First Amended Complaint ("FAC"), filed 4/30/26, asserts: (1) declaratory relief to declare agreement void or voidable and unenforceable; (2) breach of agreement; (3) negligence; (4) negligence per se; (5) violation of the unfair competition law; (6) accounting; (7) fraud; (8) negligent misrepresentation; and (9) payment on contractor's license bond.

Now, Defendant Hedberg Construction, Inc. demurs to the 7th cause of action (fraud) for failure to state facts sufficient and for failure to plead with particularity. Defendant argues that Plaintiff

relies on generalized assertions on how and what misrepresentations were made. Defendant also asserts that the FAC alleges a standard contractual breach but not fraud.

In opposition, Plaintiff argues that there are, “at great length,” specific allegations of misrepresentations and statutory violations. Specifically, paragraph 80 of the FAC contains multiple instances of fraudulent acts on various dates. Plaintiff also argues that less specificity is required when the defendant possesses information of the underlying facts. Plaintiff further asserts that Defendant’s willful violations of the home improvement statutes are the basis for fraud.

In reply, Defendant argues that the claims in the FAC are conclusory statements. Defendant asserts that Plaintiff’s opposition merely recites the conclusory allegations without showing any intent to defraud. Defendant asserts that Plaintiff failed to meet the particularity standard.

Demurrer

A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (CCP § 430.10(e).) In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) The court assumes the truth of all material facts which have been properly pleaded, of facts which may be inferred from those expressly pleaded, and of any material facts of which judicial notice has been requested and may be taken. (*Crowley v. Kettleman* (1994) 8 Cal. 4th 666, 672.) However, a demurrer does not admit contentions, deductions or conclusions of fact or law. (*Daar v. Yellow Cab Company* (1967) 67 Cal.2d 695, 713.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

7th Cause of Action - Fraud

The elements of fraud must be pled specifically. (*Stansfield v. Starkey* (1999) 220 Cal.App.3d 59, 73.) “This particularity requirement necessitates pleading facts which ‘show how, when, where, to whom, and by what means the representations were tendered.’” (*Id.*, citing *Hill Transportation Co. v. Southwest Forest Industries, Inc.* (1968) 266 Cal.App.2d 702, 707.) General and conclusory allegations of fraud are insufficient. (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 645.)

Fraud consists of: (1) misrepresentation of a material fact (consisting of a false representation, concealment or non-disclosure); (2) knowledge of the falsity (i.e., scienter); (3) intent to deceive and induce reliance; (4) justifiable and actual reliance on the misrepresentation; and (5) resulting damage. (*City of Atascadero v. Merrill Lynch, Pierce, Fenner & Smith, Inc.* (1998) 68 Cal.App.4th 445.) A plaintiff must allege what was said, by whom, in what manner (i.e. oral or in writing), when, and, in the case of a corporate defendant, under what authority to bind the corporation. (*West v. JPMorgan Chase Bank, N.A.* (2013) 214 Cal.App.4th 780, 793.)

Here, Defendant argues that the FAC contains only “generalized assertions,” and that “[s]imply stating that Hedberg ‘fraudulently procured a deposit’ and ‘fraudulently billed [Plaintiff] for work’ is not sufficient.” Contrary to Defendant’s arguments, the FAC alleges specific instances of misrepresentations and identifies that “all comments and communications from [Defendant] were made in, and by, [its] principal, Mark Hedberg.” (FAC ¶ 5.)

For the deposit, the FAC alleges that on or about 7/7/22, Defendant requested and Plaintiff paid a 10% security deposit of \$144,999.58. (FAC ¶ 80(b).) The FAC quotes an email from Defendant's principal, Mark Hedberg, dated 7/7/22 stating:

“Deposit will initially be held as a credit, as we progress and generate progress billing (typically monthly) we will send you detailed invoices and simply draw against this deposit amount until it is gone...” (*Ibid.*)

The FAC then alleges that this was a false representation because the promised drawing and billing credit method “never occurred.” (FAC ¶ 80(b).)

For other billings, the FAC alleges that from October 2022 through December 2023, Defendant billed charges against Plaintiff for a “Carpenter’s Assistant” who was actually Hedberg’s “unqualified son” who was “not qualified in that position.” (*Id.*, ¶ 80(c).) The FAC also alleges that during a 4/1/25 in-person meeting to discuss project deficiencies, Defendant’s principal Hedberg promised he would “just write [Plaintiff] a check for that,” but “[t]hat payment/reimbursement was never forthcoming.” (*Id.*, ¶ 80(e).)

The FAC also identifies a specific email exchange on 7/13/24 in which Hedberg “acknowledged” demands for prepayments of services that had not been rendered. (*Id.*, ¶ 80(f).) The FAC further identifies that Defendant overcharges for correcting its own construction mistakes, including patching drywall holes and cutouts created by Defendant and repeatedly redoing work on a pair of doors, referencing a specific invoice dated 9/18/23. (*Id.*, ¶ 80(g).) The FAC alleges that “[d]espite the fact that these were acknowledged mistakes on the part of [Defendant],” these duplicate and corrective costs were fraudulently passed on to Plaintiff. (*Id.*)

The FAC then alleges that “Mark Hedberg, acting by and on behalf of [Defendant], made these representations ... he knew [them] to be false and made [them] with the intent to induce [Plaintiff] to act in reliance.” (*Id.*, ¶ 81.) Finally, the FAC alleges that at the time these representations were made, Plaintiff was ignorant of the falsity of the representations and believed them to be true. (*Id.*, ¶ 82.) These allegations are sufficient to satisfy the heightened pleading standard for fraud.

Defendant argues that Plaintiff’s claim is merely a contractual breach claim disguised as tortious fraud, citing *Robinson Helicopter Co., Inc. v. Dana Corp.* (2004) 34 Cal.4th 979. This argument is not persuasive. Generally, “a tortious breach of contract ... may be found when ... the breach is accompanied by a traditional common law tort, such as *fraud* or conversion.” (*Erlich v. Menezes* (1999) 21 Cal.4th 543, 553-54 [italics added].) Here, the FAC alleges that Defendant knowingly billed Plaintiff for unearned, unqualified, and fraudulent labor markups (FAC, ¶¶ 42, 80); failed to draw against the security deposit as represented (*Id.*, ¶ 80(b)); failed to reimburse Plaintiff for deficiencies as representing (*Id.*, ¶ 80(e)); demanded and acknowledged prepayments for construction services that were never actually rendered (*Id.*, ¶¶ 42, 49, 80(f)); and billed Plaintiff for deceptive markups for repairing its own mistakes (*Id.*, ¶ 80(g)).

Thus, because the allegations are sufficient to allege that Defendant made misrepresentations that induced payments outside the scope of the parties’ contract, these claims are independent of a mere contractual breach claim. OVERRULED.

5.

CASE #	CASE NAME	HEARING NAME
CVPS2505265	YIP VS HEDBERG CONSTRUCTION, INC.	MOTION TO STRIKE 1ST AMENDED COMPLAINT OF GEEMAN YIP BY HEDBERG CONSTRUCTION, INC.

Tentative Ruling: Denied.

Responding party to provide notice pursuant to CCP 1019.5.

Defendant moves to strike paragraphs 77 to 85 of the FAC (the 7th cause of action for fraud), the prayer for punitive and exemplary damages, and any allegations seeking punitive damages. Defendant asserts that these paragraphs are conclusory and improper. In support, Defendant submits the declarations of counsel and Defendant's president to challenge the truth of the allegations.

In opposition, Plaintiff argues that Defendant's motion to strike is an improper attempt to conduct a "line-item veto." Plaintiff asserts that the court must assume the truth of the allegations and consider them in context. Plaintiff argues that Defendant cannot use extrinsic evidence (such as the declarations) to support the motion. Plaintiff argues that the FAC's pleadings are sufficient for punitive damages.

In reply, Defendant argues that Plaintiff's opposition failed to address the defects. It argues that merely labeling conduct as "fraudulent" is not sufficient. Defendant otherwise repeats its arguments in the moving papers.

Untimeliness of Plaintiff's Opposition to the Motion to Strike

Plaintiff filed and served the opposition to the motion to strike one day late due to a calendaring error calculated based on the 7/16/26 hearing date for the demurrer, rather than the 7/15/26 hearing date for the motion to strike. (Bauer Decl. ¶ 4.) While the opposition was technically untimely, the court has discretion to consider an untimely-served opposition. (See CRC 3.1300(d); *Slayton v. Superior Court* (2006) 146 Cal.App.4th 55, 58, n. 2; *Kapitanski v. Von's Grocery Co.* (1983) 146 Cal.App.3d 29.) More importantly, by filing a substantive reply on the merits, Defendant waived any defect or irregularity in the filing and service of the opposition. (See *Carlton v. Quint* (2000) 77 Cal.App.4th 690, 697.) Accordingly, the court will exercise its discretion to consider Plaintiff's opposition to the motion to strike on its merits.

Motion to Strike

The court may, upon a motion made pursuant to CCP §435:

- (a) Strike out any irrelevant, false, or improper matter inserted in any pleading.
- (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.

(CCP § 436). On a motion to strike, as with a demurrer, "the court treats as true the material facts alleged in the complaint, as well as any facts which may be implied or inferred from those expressly alleged." (*Washington Int'l Ins. Co. v. Sup. Ct.* (1998) 62 Cal.App.4th 981, 984, n. 2).

Defendant moves to strike paragraph 77 through 85, and prayers and allegations related to punitive and exemplary damages. In support, Defendant relies on the Declaration of Hedberg. In

his declaration, Hedberg declares that he never made the representations alleged, that the deposit was handled as agreed (§ 5), that his son was qualified (§ 7), that Plaintiff misconstrued the promised reimbursement (§ 8), and that “[e]verything [Plaintiff] invoiced for was completed” (§ 10).

However, the use of a declaration is improper on a motion to strike. The court must read allegations of a pleading subject to a motion to strike “as a whole, all parts in their context, and assume their truth.” (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255.) Challenging the truth of the allegations is a matter for summary judgment, not a motion to strike. Excluding the Hedberg Declaration, Defendant has presented no proper grounds on the face of the pleading to strike paragraph 77 through 85 of the FAC.

For punitive damages, a plaintiff must plead allegations of fraud, malice, or oppression with sufficient particularity. (*Hilliard v. AH Robbins Co.* (1983) 148 Cal.App.3d 374, 392.) Generally, claims for punitive damages must be pled with particularity as to the facts constituting the alleged egregious conduct. (*G.D. Searle & Co. v. Superior Court* (1975) 49 Cal.App.3d 22, 29.) However, the court may read the complaint as a whole so that conclusory allegations may be sufficient when read in context with the facts alleged as to the defendant’s wrongful conduct. (*Perkins v. Superior Court (General Tel. Directory Co.)* (1981) 117 Cal.App.3d 1, 6-7.) Fraud is “an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.” (Civ. Code § 3294(c)(3).) Here, because the FAC has sufficiently pled misrepresentations to support a fraud claim, it has also sufficiently pled the basis for damages.

6.

CASE #	CASE NAME	HEARING NAME
CVPS2509122	RODRIGUEZ VS DEPARTMENT OF MOTOR VEHICLES	HEARING ON WRIT OF MANDATE (CEQA)

Tentative Ruling: Hearing continued on court’s own motion to August 5, 2026 at 8:30 a.m., Department PS2.

No further briefing will be permitted.